

25STLC06003 25STLC06003

County: los-angeles

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Case Number: 25STLC06003 Hearing Date: July 2, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Quickturn Group, Inc.'s Motion to Compel Responses to Written Discovery Requests, Set One, and Request for Monetary Sanctions is denied.

Analysis:

Plaintiff Quickturn Group, Inc. ("Plaintiff") propounded Special Interrogatories, Set One, Form Interrogatories, Set One, Request for Production of Documents, Set One, and Requests for Admission, Set One, on Defendant Pollos El Pariente, Inc. ("Plaintiff") on January 16, 2026. (Motion, McGrath Decl., Exhs. A-D.) Despite a meet and confer effort, Plaintiff has not served responses as of the filing of the instant Motion on May 28, 2026. (Id. at ¶¶7-12 and Exhs. E-G.)

Plaintiff filed the instant Motion to Compel Responses to Written Discovery Requests, Set One, and Request for Monetary Sanctions and concurrently served it on Defendant through Attorney Lofty Mrich, Esq. by first-class mail. No opposition has been filed to date.

Discussion

Initially, the Court notes that Defendant filed combined motions to compel responses with respect to four separate sets of discovery: (1) Special Interrogatories, Set One; (2) Form Interrogatories, Set One; (3) Request for Production of Documents, Set One, and (4) Requests for Admission, Set One.

Filing a request to compel responses to four separate sets of discovery as a single motion creates the following problems. First, it negatively impacts the Court's calendar by placing more motions on the calendar than slots have been provided by the online reservation system. Second, it results in confusion in the motion papers regarding the arguments and evidence with respect to each request. Finally, combining multiple discovery sets into a single motion allows the moving party to avoid paying the requisite filing fees. Statutorily required filing fees are jurisdictional and "it is mandatory for the court clerks to demand and receive statutorily required filing fees." (See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.) Plaintiff must make a separate motion reservations to address each set of discovery and pay each filing fee.

Additionally, the Court finds that the discovery requests served by Plaintiff do not comply with Code of Civil Procedure section 94, which allows only 35 written discovery requests in the Limited Civil Court unless otherwise authorized by court order or by stipulation. (Code Civ. Proc., § 94, subd. (a); § 95.) Plaintiff served Defendant with more than 35 interrogatories alone. (Motion, McGrath Decl., Exhs. A-B.) Based on the foregoing, the instant discovery Motion is denied. The Court will not grant a motion to compel discovery propounded in violation of the Code of Civil Procedure.

Conclusion

Plaintiff Quickturn Group, Inc.'s Motion to Compel Responses to Written Discovery Requests, Set One, and Request for Monetary Sanctions is denied.

Moving party to give notice.